

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                     |                           |                                                        |                                               |                                 |
|--------------------------------------------------|-------------------------------------|---------------------------|--------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Emilia Mancini                  | Team:<br>Squad #07                  | CCRB Case #:<br>201802218 | <input type="checkbox"/> Force                         | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                     |                           | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Friday, 03/09/2018 11:00 PM  | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>9/9/2019    | Precinct:<br>73                                        |                                               |                                 |
| Date/Time CV Reported<br>Fri, 03/16/2018 4:30 PM | CV Reported At:<br>IAB              | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Wed, 03/21/2018 11:06 AM |                                               |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s)   | Shield | TaxID  | Command |
|----------------------|--------|--------|---------|
| 1. POM Brett Woodard | 27829  | 958175 | 073 PCT |

| Witness Officer(s)      | Shield No | Tax No | Cmd Name |
|-------------------------|-----------|--------|----------|
| 1. POF Shalimar Korycki | 20375     | 959420 | 073 PCT  |

| Officer(s)            | Allegation                                                                                      | Investigator Recommendation |
|-----------------------|-------------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Brett Woodard | Abuse: Police Officer Brett Woodard threatened § 87(2)(b) with the use of force.                | A . Unsubstantiated         |
| B . POM Brett Woodard | Discourtesy: Police Officer Brett Woodard spoke discourteously to § 87(2)(b)                    | B . Unsubstantiated         |
| C . POM Brett Woodard | Abuse: Police Officer Brett Woodard searched the vehicle in which § 87(2)(b) was an occupant.   | C . Exonerated              |
| D . POM Brett Woodard | Abuse: Police Officer Brett Woodard refused to provide his name and shield number to § 87(2)(b) | D . Unsubstantiated         |
| E . POM Brett Woodard | Discourtesy: Police Officer Brett Woodard acted discourteously toward § 87(2)(b)                | E . Unsubstantiated         |

### Case Summary

On March 16, 2018, § 87(2)(b) filed this complaint via phone with the Internal Affairs Bureau. On March 21, 2018, IAB referred this complaint to CCRB via log number 18-10436.

On March 9, 2018, at approximately 10:10 p.m., while driving towards § 87(2)(b) in Brooklyn, § 87(2)(b) was pulled over by PO Brett Woodard of the 73<sup>rd</sup> Precinct and his partner, PO Shalimar Korycki. Allegedly, PO Woodard put his hand on his gun and told § 87(2)(b) “Get on the fucking floor or else (**Allegation A: Abuse of Authority, Unsubstantiated; Allegation B: Discourtesy, Unsubstantiated**). When § 87(2)(b) asked, “Or else what? Are you going to shoot me?” PO Woodard allegedly replied, “You’ll see,” and pulled his gun halfway out of the holster (**within Allegation A: Abuse of Authority**). Then PO Woodard reached over inside § 87(2)(b) s car and pushed § 87(2)(b) s hand away from the door’s handle and pulled the handle to open the door (**Allegation C: Abuse of Authority, Exonerated**). § 87(2)(b) asked PO Woodard to provide his name and shield number, but PO Woodard allegedly refused (**Allegation D: Abuse of Authority, Unsubstantiated**). PO Woodard then allegedly threw a summons, driver’s license and registration at § 87(2)(b) (**Allegation E: Discourtesy**). PO Woodard issued a summons to § 87(2)(b) for a broken headlight.

### Findings and Recommendations

**Allegation A – Abuse of Authority: Police Officer Brett Woodard threatened § 87(2)(b) with the use of force.**

**Allegation B – Discourtesy: Police Officer Brett Woodard spoke discourteously to § 87(2)(b)**

It is undisputed that PO Woodard and PO Korycki stopped § 87(2)(b)

In his verified interview, § 87(2)(b) stated that upon approaching the driver side of his car, PO Woodard knocked on his window which was rolled up and stated, “Yo give me your license.” § 87(2)(b) asked PO Woodard why he was stopped, but PO Woodard ignored the question and asked § 87(2)(b) to provide his driver’s license. § 87(2)(b) was not certain whether or not PO Woodard was a real police officer and asked him, “How do I know that you are a police officer?” to which PO Woodard responded, “Actually I am, give me your license.” PO Woodard and § 87(2)(b) went back and forth where PO Woodard asked for § 87(2)(b) s driver’s license, and § 87(2)(b) refused to provide it and kept asking why he was stopped. Then, PO Woodard placed his right hand on his gun located in the holster attached to his waist and stated, “Get out of the fucking car and get on the floor or else..” PO Woodard did not pull out his gun. PO Woodard repeated that statement a couple more times and he stated “or else” approximately fifteen more times. § 87(2)(b) asked, “What do you mean or else?” and PO Woodard stated, “You’ll see.” Even though PO Woodard did not verbalize a specific threat, § 87(2)(b) perceived the statement “or else” as a threat, because PO Woodard kept his hand on his gun and § 87(2)(b) thought he would shoot him. § 87(2)(b) raised his voice and used profanity towards PO Woodard when he instructed him to get out of the car. [03 Board Review].

§ 87(2)(g)

§ 87(2)(b) in his phone statement to IAB, § 87(2)(b) did not mention that, during the incident, PO Woodard touched or pulled his gun halfway out of the holster [01 Board Review, 02 Board Review].

PO Woodard stated to the CCRB that, upon approaching the driver side of § 87(2)(b)'s car, he identified himself as an officer by saying "police," and explained to § 87(2)(b) that he was stopped because he had a defective headlight on the passenger side. PO Woodard asked § 87(2)(b) to provide his driver's license approximately ten times, and § 87(2)(b) refused to do so. PO Woodard denied that § 87(2)(b) told him that he doubted that PO Woodard was a real police officer. PO Woodard denied that he told § 87(2)(b) "Get out of the fucking car." PO Woodard denied that at any point he touched his gun. PO Woodard denied that he stated, "Get on the floor or else." PO Woodard described § 87(2)(b)'s demeanor as irate and confrontational and stated that § 87(2)(b) raised his voice with him. PO Woodard did not recall whether or not § 87(2)(b) used profanity towards him [04 Board Review]

§ 87(2)(g)  
PO Korycki stated that, upon approaching the driver side of § 87(2)(b)'s car, PO Woodard asked § 87(2)(b) to provide his driver's license and registration and § 87(2)(b) gave the documents to PO Woodard right away [05 Board Review]

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It is therefore recommended that **Allegation A** and **Allegation B** be closed as **Unsubstantiated**.

**Allegation C – Abuse of Authority: Police Officer Brett Woodard searched the vehicle in which § 87(2)(b) was an occupant.**

It is undisputed that sometime during the incident, PO Woodard reached with his hand inside of § 87(2)(b)'s car.

In his verified interview, § 87(2)(b) testified that PO Woodard asked him to provide his driver's license several times. § 87(2)(b) thought that PO Woodard asked for his driver's license five times. However, § 87(2)(b) refused to provide it. PO Woodard extended his arm and reached over inside of § 87(2)(b)'s car from the driver side. PO Woodard pushed § 87(2)(b)'s hand away from the door's handle and pulled it to open the door. As PO Woodard was reaching the door's handle, § 87(2)(b) grabbed his cellphone located on the car mount attached to the dashboard and called 911. The 911 operator asked § 87(2)(b) whether he felt safe, § 87(2)(b) stated that he did not feel safe but he would give his driver's license to PO Woodard. § 87(2)(b) handed his driver's license, registration, and insurance to PO Woodard [03 Board Review].

PO Woodard stated to the CCRB that he asked § 87(2)(b) to provide his driver's license, insurance, registration or some other type of identification for about ten times, but § 87(2)(b) refused to provide them. PO Woodard stated that according to the standard procedure, it is not possible to issue a summons on the street without some type of identification. Therefore, in those circumstances, individuals who refuse to provide identification are taken to the stationhouse and issued a summons or arrested, depending on the outcome of the identification's check. PO Woodard explained this procedure to § 87(2)(b) and told him that if he refused to provide his

identification, he would have to go to the stationhouse to be issued a summons. PO Woodard believed that he told § 87(2)(b) that if he did not provide him with an identification, he could have been arrested. However, § 87(2)(b) refused to provide his identification. PO Woodard opened the driver side door by pulling the door handle from the outside. § 87(2)(b) shouted, “You can’t do that.” PO Woodard did not recall if the vehicle was unlocked when he opened it or whether he pulled up the lock inside of the vehicle before using the handle. PO Woodard denied that he reached inside of § 87(2)(b)’s car to open his door. When PO Woodard opened the car’s door, § 87(2)(b) grabbed his driver’s license from somewhere inside the car, and he was holding it in his hand. PO Woodard reached inside of the vehicle with his right hand and snatched the driver’s license from § 87(2)(b)’s hand. As PO Woodard grabbed the license, § 87(2)(b) moved his arm back in an effort of preventing him to take it, and stated, “You can’t do that, you can’t open my door and you can’t take my ID.” PO Woodard stated, “Yes sir, I absolutely can, stay in the car, I’ll be right back” [04 Board Review].

PO Korycki stated to the CCRB that § 87(2)(b) provided his identification right away when PO Woodard asked him to do so. PO Korycki denied that PO Woodard opened § 87(2)(b)’s car’s door or that he reached inside of the car with his hand [05 Board Review].

When issuing a summons returnable to the Traffic Violations Bureau or criminal court, officers should request that violator show proof of identity and residence. If doubt concerning identity exists, officers may remove the violator to command for investigation. Patrol Guide, Section 209-09 [06 Board Review].

§ 87(2)(g)

§ 87(2)(g). It is therefore recommended that **Allegation C** be closed as **Exonerated**.

**Allegation D – Abuse of Authority: Police Officer Brett Woodard refused to provide his name and shield number to § 87(2)(b)**

It is undisputed that § 87(2)(b) asked PO Woodard to provide his name and shield number to him.

In his verified interview, § 87(2)(b) stated that he asked PO Woodard for his name, but PO Woodard did not provide it. In response, PO Woodard stated, “I’ll be back” and walked away. Then, § 87(2)(b) saw from his car’s mirror that PO Woodard and PO Korycki went back in the police vehicle. PO Woodard, who was the driver, made a U-turn and drove off [03 Board Review].

PO Woodard stated to the CCRB that § 87(2)(b) asked him for his name and shield number three times, and PO Woodard provided both information to him twice. Furthermore, PO Woodard had his shield and name exposed and visible to § 87(2)(b) as it was attached to a neck chain that he was wearing on his shirt. PO Korycki's statement is consistent with PO Woodard's statement [04 Board Review, 05 Board Review].

§ 87(2)(g)  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED] It is therefore recommended that **Allegation D** be closed as **Unsubstantiated**.

**Allegation E – Discourtesy: Police Officer Brett Woodard acted discourteously toward**

§ 87(2)(b)  
It is undisputed that PO Woodard took § 87(2)(b)'s driver's license and went back to the police car, where he wrote a summons for a defective headlight.

In his verified interview, § 87(2)(b) stated that when PO Woodard returned his documents, he threw a summons on his lap [03 Board Review].

PO Woodard did not recall how he gave the summons and the driver's license to § 87(2)(b) but he thought that he handed it to him. However, PO Woodard stated that there might be a possibility that he placed the summons on § 87(2)(b)'s lap and left since he had to respond to a situation of emergency due to receiving a 10-85 over the radio. PO Woodard specified that 85 codes are not routinely received and that according to the standard procedure when officers receive an 85 code, they should drop anything they are doing and respond as soon as possible [04 Board Review].

§ 87(2)(g). PO Korycki stated that while PO Woodard was writing the summons in the police car, a 10-85 code came over through the radio. Even if PO Korycki confirmed that the request of assistance was urgent, she denied that PO Woodard sped things up to respond to the job as fast as possible because he was almost done with § 87(2)(b) and the last thing to do was only to give him the summons. PO Korycki and PO Woodard went back to § 87(2)(b)'s car and PO Woodard handed the summons to § 87(2)(b). Even though § 87(2)(b) did not want to hear what the summons was issued for and what PO Woodard had to say about the summons, § 87(2)(b) took the summons. PO Korycki denied that PO Woodard threw a summons at § 87(2)(b) [05 Board Review].

§ 87(2)(g)  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED] It is therefore recommended that **Allegation E** be closed as **Unsubstantiated**.

**Civilian and Officer CCRB Histories**

- This is the third CCRB complaint to which § 87(2)(b) has been a party [07 Board Review].
- § 87(2)(b)
- § 87(2)(b)
- PO Woodard has been a member of service for three and a half years. § 87(2)(b)
- § 87(2)(g)

**Mediation, Civil and Criminal Histories**

- On April 10, 2018, this case was sent to the mediation unit. On June 15, 2018, the case was returned to investigation after an unsuccessful mediation attempt.
- As of August 28, 2018, § 87(2)(b) has not filed a Notice of Claim in regard to this incident [08 Board Review].
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

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Squad No.: 7

|               |           |                    |       |
|---------------|-----------|--------------------|-------|
| Investigator: | _____     | Emilia Mancini     | _____ |
|               | Signature | Print Title & Name | Date  |
| Squad Leader: | _____     | _____              | _____ |
|               | Signature | Print Title & Name | Date  |
| Reviewer:     | _____     | _____              | _____ |
|               | Signature | Print Title & Name | Date  |